Summary: The UN Goes to War in the Central African Republic – What are the Limits of Peacekeeping?

Patryk I. Labuda (Central European University), *Just Security*, 23 March 2017 – blog article

In one paragraph. On **26 February 2017** the UN mission in the Central African Republic (**MINUSCA**) used an **attack helicopter** against about 40 alleged members of the armed group **FPRC** approaching the town of **Bambari** – one killed, seven wounded, three detained – because they had crossed a "**red line**" the UN drew around the city to protect civilians. Labuda uses this to ask how far "**robust**" peacekeeping can go. If MINUSCA is fighting the FPRC at the level of a **NIAC**, IHL applies; but the UN resists this, because it would make peacekeepers **lawful targets**. If IHL does **not** apply, human rights law governs, and killing someone for crossing a line looks like a prima facie violation of the **right to life**. Either way, the mandate ("defence of the mandate") is **not a legal basis** for force on its own. And the UN cannot attack armed groups while claiming **absolute immunity** from counter-attack. Key open questions: how long peacekeepers remain targetable (a "revolving door"?), and whether the **whole mission** – including civilian staff – becomes a target.

1. The facts: the Bambari attack

- MINUSCA reported that on 26 February 2017 it "had intervened" to stop "an offensive maneuver" by about **40 alleged FPRC members** (Popular Front for Central African Renaissance) near **Bambari**: **one killed, seven wounded, three detained** for "questioning".
- The force commander said peacekeepers "had to react" because the group "**crossed a red line**" – a perimeter MINUSCA had imposed around Bambari to **protect civilians**, declaring it a "**zone without armed groups**".
- It was not an isolated event: FPRC leader **Joseph Zoundeko** was killed in a UN helicopter attack on **11 February**, and the **Portuguese contingent** was reported to be "in direct combat with armed rebels", inflicting "heavy casualties" – terms "not … one usually hears in relation to UN peacekeeping" (Evan Cinq-Mars, CIVIC).

2. MINUSCA's mandate and the principles of peacekeeping

- Peacekeeping rests on **three principles**: **consent**, **impartiality** and **non-use of force** (except in self-defence and defence of the mandate). These are "increasingly hazy" as peacekeepers are deployed where there is "little or no peace to keep" – also in South Sudan, the DRC and Mali, blurring traditional **peacekeeping** and coercive **peace enforcement**.
- **UNSC Resolution 2301 (2016)**, adopted under **Chapter VII**, authorizes MINUSCA to take "**all necessary means**" for priority tasks: protection of civilians, human rights, and a secure environment for humanitarian assistance (para. 33). Its strategic objective is to reduce the presence and threat of armed groups through a "**proactive and robust posture** without prejudice to the basic principles of peacekeeping" (para. 34).
- This is less far-reaching than the DRC **Intervention Brigade** (Res. 2098 (2013): "neutralize armed groups"), but still gives very broad authority. The question is its **limits under international law**.

3. Is MINUSCA in an armed conflict?

- IHL applies to UN forces when they are engaged in armed conflict – recognized by the **1999 UN Secretary-General's Bulletin** ("Observance by United Nations forces of IHL"). By initiating hostilities, MINUSCA may also forfeit its status as a traditional peacekeeping force (Bulletin, s. 1.1).

- **Classification**: since MINUSCA fights only non-state actors, the relevant law is that of **NIAC**.
- **Organization**: the **FPRC** appears to have a command structure, so it is likely an organized armed group; for some **anti-balaka** "self-defence" groups this is less certain.
- **Intensity**: the key question. The facts are incomplete, but repeated helicopter attacks, the killing of the FPRC leader and "direct combat" suggest the Bambari incident is "**just the tip of the iceberg**".
- **The UN's reluctance**: accepting IHL would put the whole **multidimensional** mission – including civilian human rights and humanitarian staff – at risk. So MINUSCA is likely to insist the violence stays **below the threshold**; a week after the attack, its 4 March communiqué projected "business as usual". But IHL applicability is "a purely **objective factual determination**" beyond the UN's control.

This raises four questions for the UN:

1. What legal framework governs the **targeting of rebels**?
2. May rebels lawfully **target peacekeepers**?
3. For **how long** are peacekeepers targetable?
4. **Whom** within MINUSCA may rebels target?

4. Who is a legitimate target?

(a) The UN's authority to use force against rebels

- Usually the hard question is when peacekeepers acting in **self-defence** become bound by IHL. Here MINUSCA itself **launches** attacks, so it is "implausible" to deny that IHL applies.
- Resolution 2301 reaffirms non-use of force "except in **self-defense and defense of the mandate**". Self-defence is uncontroversial; "**defence of the mandate**" is the legal conundrum of robust peacekeeping.
- Invoking the mandate (the "zone without armed groups" around Bambari) does not answer which **norms govern** the force used – unless one accepts "an entirely new and autonomous body of UN peacekeeping law". The real choice is **IHL or international human rights law (IHRL)**.
- **If IHRL applies**: the UN has never formally accepted IHRL's general applicability to peacekeeping (no equivalent of the 1999 Bulletin), but peacekeepers are increasingly seen as bound by some customary human rights norms, including the non-derogable **right to life**. Then killing a person because they **crossed a line** is a **prima facie violation** – lethal force is normally not justified by that. Much depends on the facts: who fired first, warning shots, the **rules of engagement**.
- Conclusion: relying on the mandate to justify the attack is "**circular**". MINUSCA may enforce its mandate, but any use of force is still governed by **binding international norms – IHL or IHRL**.

(b) May rebels target peacekeepers?

- MINUSCA warned that "any attack targeting the civilian population, UN personnel and humanitarian organizations constitutes a **war crime**". Two problems: (1) a war crime requires an **armed conflict** – so the UN implicitly concedes IHL applies; (2) it "beggars belief" that MINUSCA can attack an armed group and then claim **absolute immunity** from counter-attack.
- Peacekeepers are protected only while they keep **protected status under IHL**: **Rome Statute Art. 8(2)(e)(iii)** criminalizes attacks on peacekeeping personnel "**as long as they are entitled to the protection given to civilians** or civilian objects under the international law of armed conflict".
- After "proactive" attacks like Bambari, rebels arguably have a right to **defend themselves** without violating the prohibition on attacking peacekeepers – at least as **individual self-defence**, recognized in all national criminal laws, whether or not there is an armed conflict.

(c) For how long are peacekeepers targetable?

- If there is a NIAC, can the FPRC target peacekeepers for the **whole duration** of the conflict? Or only when they lose civilian protection – i.e. while they **directly participate** in hostilities?
- If peacekeepers are treated like civilians, this creates a "**revolving door**" (ICRC Interpretive Guidance, pp. 70–73): they lose and regain protection with each operation. That undermines the **equality of belligerents**: MINUSCA could attack whenever its mandate allows, while armed groups would have to wait to be attacked before responding.

(d) Whom within the mission may rebels target?

- Experts distinguish the **military, police and civilian** components of a mission, but all use the **same UN emblem**, which complicates the **principle of distinction**.
- Non-military UN staff may be targeted because of their association with the UN – especially when **military convoys escort humanitarian actors**. This unresolved issue of multidimensional peacekeeping "urgently needs more attention" (citing M. Pacholska).

5. Conclusion

The legal limits of peacekeeping receive less attention than the targeting practices of states, but this may change. In February 2017 the CAR appointed the Special Prosecutor of the **Special Criminal Court (SCC)**, a hybrid tribunal for serious violations of IHL and human rights law with **open-ended temporal jurisdiction**. It could investigate the violence around Bambari – including attacks on peacekeepers – and so help clarify "the nature and limits of modern UN peacekeeping and its relationship to other bodies of international law".

Key takeaways

- "**Robust**" Chapter VII mandates (UNSC Res. 2301: "all necessary means", "proactive and robust posture") are stretching the classic principles of **consent, impartiality and non-use of force**.
- Whether the UN is a **party to a NIAC** is an **objective** question of organization and intensity – not something the UN can decide by calling its operations peacekeeping.
- MINUSCA's repeated attacks on the **FPRC** (an organized armed group) make it hard to deny that IHL applies – yet the UN resists to protect its **civilian and humanitarian** components.
- The mandate ("**defence of the mandate**") is not an independent legal basis for force: force is governed by **IHL** (if there is an armed conflict) or **IHRL** (if not) – under IHRL, killing for crossing a "red line" is a likely violation of the right to life.
- Peacekeepers are protected only "**as long as they are entitled to the protection given to civilians**" (Rome Statute Art. 8(2)(e)(iii)); after attacking, they cannot claim **absolute immunity**.
- Treating peacekeepers like civilians creates a **revolving door** that undermines the **equality of belligerents**.
- The shared **UN emblem** means civilian and humanitarian staff risk being targeted – a challenge for **distinction**.
- Courts such as the CAR **Special Criminal Court** may help clarify these questions.

Why it is relevant to this week's topic

Unorthodox armed actors

- **UN peacekeepers** are a classic "unorthodox" armed actor: not a state party, not an armed group, but an **international organization** using force. The article shows how they can become a **party to a NIAC** (1999 SG Bulletin; ICRC 2024 opinion paper – multinational forces and command and control).

- It applies the **organization** test to non-state actors on the other side: the **FPRC** (organized) v. the **anti-balaka** self-defence groups (doubtful) – a reminder that not every armed group is a party.
- It raises the **status** of peacekeepers: normally protected **like civilians**, but they lose that protection when they fight – and the question whether that loss is **function-based** (like membership/CCF) or **act-based** (like DPH).

Conduct of hostilities

- It turns on the **threshold question**: if there is a NIAC, IHL's targeting rules (distinction, proportionality, precautions) govern MINUSCA's attacks; if not, the stricter **law-enforcement** rules of IHRL apply – the same paradigm question as in counter-terrorism and targeted killing.
- It applies the **DPH / revolving door** logic of the ICRC Interpretive Guidance to peacekeepers, and highlights the **equality of belligerents** problem.
- The **shared emblem** problem shows how **distinction** becomes difficult when military, police and civilian staff of one actor look the same – similar to the issues with civilians accompanying armed forces.
- It links IHL with **international criminal law** (war crime of attacking peacekeepers) and **accountability** (Special Criminal Court).

Means and methods of warfare

- The use of **attack helicopters** to enforce a "**red line**" around a city shows how a method (exclusion zones, area denial) can be lawful under IHL against fighters but unlawful under IHRL – the legality of the **method depends on the applicable framework**.
- It raises the question whether UN forces must follow the same rules on **means and methods** as states – the 1999 SG Bulletin says yes (e.g. prohibited weapons and methods), but applies only when the UN is engaged in armed conflict.